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has said the opposite before. Under cover of overruling “only” a single decision, today’s opinion smashes a hundred-plus years of legal rulings to smithereens.

II

So how does the majority defend taking down *Williamson County* and its many precursors? Its decision rests on four ideas: a comparison between takings claims and other constitutional claims, a resort to the Takings Clause’s text, and theories about two lines of this Court’s precedent. All are misguided. The majority uses the term “shaky foundations.” *Ante*, at 204. It knows whereof it speaks.

The first crack comes from the repeated assertion (already encountered in the majority’s Fourth Amendment analogy, see *supra*, at 209) that *Williamson County* treats takings claims worse than other claims founded in the Bill of Rights. See *ante*, at 189, 191, 194, 202. That is not so. The distinctive aspects of litigating a takings claim merely reflect the distinctive aspects of the constitutional right. Once again, a Fourth Amendment claim arises at the moment a police officer uses excessive force, because the Constitution prohibits that thing and that thing only. (Similarly, for the majority’s other analogies, a bank robber commits his offense when he robs a bank and a tortfeasor when he acts negligently—because that conduct, and it alone, is what the law forbids.) Or to make the same point a bit differently, even if a government could compensate the victim in advance—as the majority requires here—the victim would still suffer constitutional injury when the force is used. But none of that is true of Takings Clause violations. That kind of infringement, as explained, is complete only after *two* things occur: (1) the government takes property, and (2) it fails to pay just compensation. See *supra*, at 209. All *Williamson County* and its precursors do is recognize that fact, by saying that a constitutional claim (and thus a §1983 suit) arises only after the second condition is met—when the property owner

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comes away from the government's compensatory procedure empty-handed. That is to treat the Takings Clause exactly as its dual elements require—and because that is so, neither worse nor better than any other right.

Second, the majority contends that its rule follows from the constitutional text, because the Takings Clause does not say “[n]or shall private property be taken for public use, without an available procedure that will result in compensation.” *Ante*, at 189. There is a reason the majority devotes only a few sentences to that argument. Because here's another thing the text does not say: “Nor shall private property be taken for public use, without advance or contemporaneous payment of just compensation, notwithstanding ordinary procedures.” In other words, the text no more states the majority's rule than it does *Williamson County's* (and its precursors'). As constitutional text often is, the Takings Clause is spare. It says that a government taking property must pay just compensation—but does not say through exactly what mechanism or at exactly what time. That was left to be worked out, consistent with the Clause's (minimal) text and purpose. And from 1890 until today, this Court worked it out *Williamson County's* way, rather than the majority's. See *supra*, at 209–210. Under our caselaw, a government could use reliable post-taking compensatory mechanisms (with payment calculated from the taking) without violating the Takings Clause.

Third, the majority tries to explain away that mass of precedent, with a theory so, well, inventive that it appears in neither the petitioner's nor her 15-plus *amici's* briefs. Don't read the decisions “too broadly,” the majority says. *Ante*, at 198. Yes, the Court in each rejected a takings claim, instructing the property owner to avail herself instead of a government-created compensatory mechanism. But all the Court meant (the majority says) was that the plaintiffs had sought the wrong kind of relief: They could not get injunctions because the available compensatory procedures gave

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an adequate remedy at law. The Court still believed (so says the majority) that the cases involved constitutional violations. Or said otherwise (again, according to the majority), the Court still understood the Takings Clause to prohibit delayed payment.

Points for creativity, but that is just not what the decisions say. Most of the cases involved requests for injunctions, but the equity/law distinction played little or no role in our analyses. Instead, the decisions addressed directly what the Takings Clause requires (or not). And as already shown, *supra*, at 209–210, they held that the Clause does not demand advance payment. Beginning again at the beginning, *Cherokee Nation* decided that the Takings Clause “does not provide or require that compensation shall be actually paid in advance.” 135 U. S., at 659. In *Backus v. Fort Street Union Depot Co.*, 169 U. S. 557, 567–568 (1898), the Court declared that a property owner had no “constitutional right to have the amount of his compensation finally determined and paid before yielding possession.” By the time of *Williams v. Parker*, 188 U. S., at 502, the Court could state that “it is settled by repeated decisions” that the Constitution allows the taking of property “prior to any payment.” Similarly, in *Joslin Mfg. Co. v. Providence*, 262 U. S. 668, 677 (1923), the Court noted that “[i]t has long been settled that the taking of property . . . need not be accompanied or preceded by payment, but that the requirement of just compensation is satisfied when” there is a pledge of “reasonably prompt ascertainment and payment.” In *Hurley v. Kincaid*, 285 U. S. 95, 104 (1932), the Court repeated that the “Fifth Amendment does not entitle [a property owner] to be paid in advance of the taking.” I could go on—there are eighty more years to cover, and more decisions in the early years too—but by now you probably get the idea.

Well, just one more especially good demonstration. In *Yearsley v. W. A. Ross Constr. Co.*, 309 U. S. 18 (1940), the plaintiffs sought money damages for an alleged Takings

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Clause violation. For that reason, the Court's theory about suits seeking injunctions has no possible application. Still, the Court rejected the claim: The different remedy requested made no difference in the result. And yet more important: In refusing to find a Takings Clause violation, the Court used the exact same reasoning as it had in all the cases requesting injunctions. Once again, the Court did not focus on the nature of the relief sought. It simply explained that the government had provided a procedure for obtaining post-taking compensation—and that was enough. “The Fifth Amendment does not entitle him [the owner] to be paid in advance of the taking,” held the Court, quoting the last injunction case described above. *Id.*, at 21 (quoting *Hurley*, 285 U. S., at 104; brackets in original). Because the government had set up an adequate compensatory mechanism, the taking was “within [the government's] constitutional power.” 309 U. S., at 22. Once again, the opposite of what the majority pronounces today.⁴

Fourth and finally, the majority lays claim to another line of decisions—involving the Tucker Act—but with no greater success. The Tucker Act waives the Federal Government's

⁴The majority's supposed best case to the contrary, *First English Evangelical Lutheran Church of Glendale v. County of Los Angeles*, 482 U. S. 304 (1987), is not so good, as is apparent from its express statement that it accords with *Williamson County*. See 482 U. S., at 320, n. 10. In *First English*, the Court held that a property owner was entitled to compensation for the temporary loss of his property, occurring while a (later-repealed) regulation was in effect. See *id.*, at 321. The Court made clear that a government's duty to compensate for a taking—including a temporary taking—arises from the Fifth Amendment, as of course it does. See *id.*, at 315. But the Court nowhere suggested that a Fifth Amendment violation happens even before a government denies the required compensation. (You will scan the majority's description of *First English* in vain for a quote to that effect—because no such quote exists. See *ante*, at 191–193.) To the contrary, the Court went out of its way to recognize the *Williamson County* principle that “no constitutional violation occurs until just compensation has been denied.” 482 U. S., at 320, n. 10 (internal quotation marks omitted).

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sovereign immunity and grants the Court of Federal Claims jurisdiction over suits seeking compensation for takings. See 28 U. S. C. § 1491(a)(1). According to the majority, this Court's cases establish that such an action "*is* a claim for a violation of the Fifth Amendment"—that is, for a constitutional offense that has already happened because of the absence of advance payment. *Ante*, at 201, n. 7 (emphasis in original); see *ante*, at 196. But again, the precedents say the opposite. The Tucker Act is the Federal Government's equivalent of a State's inverse condemnation procedure, by which a property owner can obtain just compensation. The former, no less than the latter, *forestalls* any constitutional violation by ensuring that an owner gets full and fair payment for a taking. The Court, for example, stated in *United States v. Riverside Bayview Homes, Inc.*, 474 U. S. 121, 128 (1985), that "so long as [post-taking Tucker Act] compensation is available for those whose property is in fact taken, the governmental action is not unconstitutional." Similarly, we held in *Preseault v. ICC*, 494 U. S. 1, 4–5 (1990), that when "compensation is available to [property owners] under the Tucker Act[,] the requirements of the Fifth Amendment are satisfied." And again, in *Ruckelshaus v. Monsanto Co.*, 467 U. S. 986, 1016 (1984), we rejected a takings claim because the plaintiff could "seek just compensation under the Tucker Act" and "[t]he Fifth Amendment does not require that compensation precede the taking." All those decisions (and there are others) rested on the premise, merely reiterated in *Williamson County*, that the "availability of a suit for compensation against the sovereign will defeat a contention that the action is unconstitutional as a violation of the Fifth Amendment." *Larson v. Domestic and Foreign Commerce Corp.*, 337 U. S. 682, 697, n. 18 (1949).⁵

⁵ *Jacobs v. United States*, 290 U. S. 13 (1933), the Tucker Act case the majority cites to support its argument, says nothing different. The majority twice notes *Jacobs*' statement that a Tucker Act claim "rest[s] upon the Fifth Amendment." *Ante*, at 190–191 (quoting 290 U. S., at 16). And so

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To the extent it deals with these cases (mostly, it just ignores them), the majority says only that they (like *Williamson County*) were “confused” or wrong. See *ante*, at 196, 201, n. 7. But maybe the majority should take the hint: When a theory requires declaring precedent after precedent after precedent wrong, that’s a sign the theory itself may be wrong. The majority’s theory is just that.

III

And not only wrong on prior law. The majority’s overruling of *Williamson County* will have two damaging consequences. It will inevitably turn even well-meaning government officials into lawbreakers. And it will subvert important principles of judicial federalism.

To begin with, today’s decision means that government regulators will often have no way to avoid violating the Constitution. There are a “nearly infinite variety of ways” for regulations to “affect property interests.” *Arkansas Game and Fish Comm’n v. United States*, 568 U. S. 23, 31 (2012). And under modern takings law, there is “no magic formula” to determine “whether a given government interference with property is a taking.” *Ibid.* For that reason, a government actor usually cannot know in advance whether implementing a regulatory program will effect a taking, much less of whose property. Until today, such an official could do his work without fear of wrongdoing, in any jurisdiction that had set up a reliable means for property owners to obtain compensation. Even if some regulatory action turned out to take someone’s property, the official would not have violated the Constitution. But no longer. Now, when a government undertakes land-use regulation (and what gov-

it does, because the compensatory obligation that the Tucker Act vindicates arises from—or “rests upon”—the Fifth Amendment. But that is a far cry from saying, as the majority does, that the Government has already violated the Fifth Amendment when the Tucker Act claim is brought—before the Government has denied fair compensation.

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ernment doesn't?), the responsible employees will almost inescapably become constitutional malefactors. That is not a fair position in which to place persons carrying out their governmental duties.

Still more important, the majority's ruling channels to federal courts a (potentially massive) set of cases that more properly belongs, at least in the first instance, in state courts—where *Williamson County* put them. The regulation of land use, this Court has stated, is “perhaps the quintessential state activity.” *FERC v. Mississippi*, 456 U. S. 742, 768, n. 30 (1982). And a claim that a land-use regulation violates the Takings Clause usually turns on state-law issues. In that respect, takings claims have little in common with other constitutional challenges. The question in takings cases is not merely whether a given state action meets federal constitutional standards. Before those standards can come into play, a court must typically decide whether, under state law, the plaintiff has a property interest in the thing regulated. See *Phillips v. Washington Legal Foundation*, 524 U. S. 156, 164 (1998); see also Sterk, *The Demise of Federal Takings Litigation*, 48 Wm. & Mary L. Rev. 251, 288 (2006) (“[I]f background state law did not recognize or create property in the first instance, then a subsequent state action cannot take property”). Often those questions—how does pre-existing state law define the property right?; what interests does that law grant?; and conversely what interests does it deny?—are nuanced and complicated. And not a one of them is familiar to federal courts.

This case highlights the difficulty. The ultimate constitutional question here is: Did Scott Township's cemetery ordinance “go[] too far” (in Justice Holmes's phrase), so as to effect a taking of Rose Mary Knick's property? *Pennsylvania Coal Co. v. Mahon*, 260 U. S. 393, 415 (1922). But to answer that question, it is first necessary to address an issue about background state law. In the Township's view, the ordinance did little more than codify Pennsylvania common

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law, which (the Township says) has long required property owners to make land containing human remains open to the public. See Brief for Respondents 48; Brief for Cemetery Law Scholars as *Amici Curiae* 6–26. If the Township is right on that state-law question, Knick’s constitutional claim will fail: The ordinance, on that account, didn’t go far at all. But Knick contends that no common law rule of that kind exists in Pennsylvania. See Reply Brief 22. And if she is right, her takings claim may yet have legs. But is she? Or is the Township? I confess: I don’t know. Nor, I would venture, do my colleagues on the federal bench. But under today’s decision, it will be the Federal District Court for the Middle District of Pennsylvania that will have to resolve this question of local cemetery law.

And if the majority thinks this case is an outlier, it’s dead wrong; indeed, this case will be easier than many. Take *Lucas v. South Carolina Coastal Council*, 505 U.S. 1003 (1992). There, this Court held that a South Carolina ban on development of beachfront property worked a taking of the plaintiff’s land—unless the State’s nuisance law already prohibited such development. See *id.*, at 1027–1030. The Court then—quite sensibly—remanded the case to the South Carolina Supreme Court to resolve that question. See *id.*, at 1031–1032. (And while spotting the nuisance issue, the Court may have overlooked other state-law constraints on development. In some States, for example, the public trust doctrine or public prescriptive easements limit the development of beachfront land. See Sterk, *The Federalist Dimension of Regulatory Takings Jurisprudence*, 114 Yale L. J. 203, 227 (2004).) Or consider *Stop the Beach Renourishment, Inc. v. Florida Dept. of Environmental Protection*, 560 U.S. 702 (2010). The federal constitutional issue there was whether a decision of the Florida Supreme Court relating to beachfront property constituted a taking. To resolve that issue, though, the Court first had to address whether, under pre-existing Florida property law, “littoral-property owners

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had rights to future accretions and contact with the water superior to the State's right to fill in its submerged land." *Id.*, at 730. The Court bit the bullet and decided that issue itself, as it sometimes has to (though thankfully with the benefit of a state high court's reasoning). But there is no such necessity here—and no excuse for making complex state-law issues part of the daily diet of federal district courts.

State courts are—or at any rate, are supposed to be—the “ultimate expositors of state law.” *Mullaney v. Wilbur*, 421 U. S. 684, 691 (1975). The corollary is that federal courts should refrain whenever possible from deciding novel or difficult state-law questions. That stance, as this Court has long understood, respects the “rightful independence of the state governments,” “avoid[s] needless friction with state policies,” and promotes “harmonious relation[s] between state and federal authority.” *Railroad Comm’n of Tex. v. Pullman Co.*, 312 U. S. 496, 500–501 (1941). For that reason, this Court has promoted practices of certification and abstention to put difficult state-law issues in state judges’ hands. See, e.g., *Arizonans for Official English v. Arizona*, 520 U. S. 43, 77 (1997) (encouraging certification of “novel or unsettled questions of state law” to “hel[p] build a cooperative judicial federalism”); *Louisiana Power & Light Co. v. City of Thibodaux*, 360 U. S. 25, 28 (1959) (approving federal-court abstention in an eminent domain proceeding because such cases “turn on legislation with much local variation interpreted in local settings”). We may as well not have bothered. Today’s decision sends a flood of complex state-law issues to federal courts. It makes federal courts a principal player in local and state land-use disputes. It betrays judicial federalism.

IV

Everything said above aside, *Williamson County* should stay on the books because of *stare decisis*. Adherence to precedent is “a foundation stone of the rule of law.” *Michigan v. Bay Mills Indian Community*, 572 U. S. 782, 798

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(2014). “[I]t promotes the evenhanded, predictable, and consistent development of legal principles, fosters reliance on judicial decisions, and contributes to the actual and perceived integrity of the judicial process.” *Payne v. Tennessee*, 501 U. S. 808, 827 (1991). *Stare decisis*, of course, is “not an inexorable command.” *Id.*, at 828. But it is not enough that five Justices believe a precedent wrong. Reversing course demands a “special justification—over and above the belief that the precedent was wrongly decided.” *Kimble v. Marvel Entertainment, LLC*, 576 U. S. 446, 456 (2015) (internal quotation marks omitted). The majority offers no reason that qualifies.

In its only real stab at a special justification, the majority focuses on what it calls the “*San Remo* preclusion trap.” *Ante*, at 185. As the majority notes, this Court held in a post-*Williamson County* decision interpreting the full faith and credit statute, 28 U. S. C. § 1738, that a state court’s resolution of an inverse condemnation proceeding has preclusive effect in a later federal suit. See *San Remo Hotel, L. P. v. City and County of San Francisco*, 545 U. S. 323 (2005); *ante*, at 184–185, 188–189, 204–205. The interaction between *San Remo* and *Williamson County* means that “many takings plaintiffs never have the opportunity to litigate in a federal forum.” *Ante*, at 204. According to the majority, that unanticipated result makes *Williamson County* itself “unworkable.” *Ibid.*

But in highlighting the preclusion concern, the majority only adds to the case for respecting *stare decisis*—because that issue can always be addressed by Congress. When “correction can be had by legislation,” Justice Brandeis once stated, the Court should let stand even “error[s] on] matter[s] of serious concern.” *Square D Co. v. Niagara Frontier Tariff Bureau, Inc.*, 476 U. S. 409, 424 (1986) (quoting *Burnet v. Coronado Oil & Gas Co.*, 285 U. S. 393, 406 (1932) (dissenting)). Or otherwise said, *stare decisis* then “carries enhanced force.” *Kimble*, 576 U. S., at 456; see *South Dakota v. Wayfair, Inc.*, 585 U. S. 162, 192 (2018) (ROBERTS, C. J.,

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dissenting) (The *stare decisis* “bar is even higher” when Congress “can, if it wishes, override this Court’s decisions with contrary legislation”). Here, Congress can reverse the *San Remo* preclusion rule any time it wants, and thus give property owners an opportunity—*after* a state-court proceeding—to litigate in federal court. The *San Remo* decision, as noted above, interpreted the federal full faith and credit statute; Congress need only add a provision to that law to flip the Court’s result. In fact, Congress has already considered proposals responding to *San Remo*—though so far to no avail. See Brief for Congressman Steve King et al. as *Amici Curiae* 7. Following this Court’s normal rules of practice means leaving the *San Remo* “ball[in] Congress’s court,” so that branch can decide whether to pick it up. *Kimble*, 576 U. S., at 456.⁶

And the majority has no other special justification. It says *Williamson County* did not create “reliance interests.” *Ante*, at 205. But even if so, those interests are a *plus-factor* in the doctrine; when they exist, *stare decisis* becomes “superpowered.” *Kimble*, 576 U. S., at 458; *Payne*, 501 U. S., at 828 (*Stare decisis* concerns are “at their acme” when “reliance interests are involved”). The absence of reliance is not itself a reason for overruling a decision. Next, the majority says that the “justification for [*Williamson County*’s] state-litigation requirement” has “evolve[d].” *Ante*, at 204. But to start with, it has not. The original rationale—in the majority’s words, that the requirement “is an element of a takings claim,” *ibid.*—has held strong for 35 years (including in the cases the majority cites), and is the same one I rely on today. See, e. g., *Horne*, 569 U. S., at 525–526 (quoting

⁶Confronted with that point, the majority shifts ground. It notes that even if Congress eliminated the *San Remo* rule, takings plaintiffs would still have to comply with *Williamson County*’s “unjustified” demand that they bring suit in state court first. See *ante*, at 204–205. But that argument does not even purport to state a special justification. It merely reiterates the majority’s view on the merits.

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Williamson County's rationale); *Suitum v. Tahoe Regional Planning Agency*, 520 U. S. 725, 734 (1997) (same); *supra*, at 209. And anyway, “evolution” in the way a decision is described has never been a ground for abandoning *stare decisis*. Here, the majority’s only citation is to last Term’s decision overruling a 40-year-old precedent. See *ante*, at 204 (citing *Janus v. State, County, and Municipal Employees*, 585 U. S. 878, 906 (2018)). If that is the way the majority means to proceed—relying on one subversion of *stare decisis* to support another—we may as well not have principles about precedents at all.

What is left is simply the majority’s view that *Williamson County* was wrong. The majority repurposes all its merits arguments—all its claims that *Williamson County* was “ill founded”—to justify its overruling. *Ante*, at 203. But the entire idea of *stare decisis* is that judges do not get to reverse a decision just because they never liked it in the first instance. Once again, they need a reason *other than* the idea “that the precedent was wrongly decided.” *Halliburton Co. v. Erica P. John Fund, Inc.*, 573 U. S. 258, 266 (2014); see *supra*, at 221–222. For it is hard to overstate the value, in a country like ours, of stability in the law.

Just last month, when the Court overturned another longstanding precedent, JUSTICE BREYER penned a dissent. See *Franchise Tax Bd. of Cal. v. Hyatt*, 587 U. S. 230, 241 (2019). He wrote of the dangers of reversing legal course “only because five Members of a later Court” decide that an earlier ruling was incorrect. *Id.*, at 261. He concluded: “Today’s decision can only cause one to wonder which cases the Court will overrule next.” *Ibid.* Well, that didn’t take long. Now one may wonder yet again.

Syllabus

REHAIF *v.* UNITED STATESCERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE ELEVENTH CIRCUIT

No. 17–9560. Argued April 23, 2019—Decided June 21, 2019

Petitioner Rehaif entered the United States on a nonimmigrant student visa to attend university but was dismissed for poor grades. He subsequently shot two firearms at a firing range. The Government prosecuted him under 18 U. S. C. § 922(g), which makes it unlawful for certain persons, including aliens illegally in the country, to possess firearms, and § 924(a)(2), which provides that anyone who “knowingly violates” the first provision can be imprisoned for up to 10 years. The jury at Rehaif’s trial was instructed that the Government was not required to prove that he knew that he was unlawfully in the country. It returned a guilty verdict. The Eleventh Circuit affirmed.

Held: In a prosecution under § 922(g) and § 924(a)(2), the Government must prove both that the defendant knew he possessed a firearm and that he knew he belonged to the relevant category of persons barred from possessing a firearm. Pp. 228–237.

(a) Whether a criminal statute requires the Government to prove that the defendant acted knowingly is a question of congressional intent. This inquiry starts from a longstanding presumption that Congress intends to require a defendant to possess a culpable mental state regarding “each of the statutory elements that criminalize otherwise innocent conduct,” *United States v. X-Citement Video, Inc.*, 513 U. S. 64, 72, normally characterized as a presumption in favor of “scienter.” There is no convincing reason to depart from this presumption here.

The statutory text supports the presumption. It specifies that a defendant commits a crime if he “knowingly” violates § 922(g), which makes possession of a firearm unlawful when the following elements are satisfied: (1) a status element (here “being an alien . . . illegally or unlawfully in the United States”); (2) a possession element (to “possess”); (3) a jurisdictional element (“in or affecting commerce”); and (4) a firearm element (a “firearm or ammunition”). Aside from the jurisdictional element, which is not subject to the presumption in favor of scienter, § 922(g)’s text simply lists the elements that make a defendant’s behavior criminal. The term “knowingly” is normally read “as applying to all the subsequently listed elements of the crime.” *Flores-Figueroa v. United States*, 556 U. S. 646, 650. And the “knowingly” requirement clearly applies to § 922(g)’s possession element, which follows the status

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element in the statutory text. There is no basis for interpreting “knowingly” as applying to the second § 922(g) element but not the first.

This reading of the statute is also consistent with a basic principle underlying the criminal law: the importance of showing what Blackstone called “a vicious will.” *Scienter* requirements advance this principle by helping to separate wrongful from innocent acts. That is the case here. Possessing a gun can be entirely innocent. It is the defendant’s *status*, not his conduct alone, that makes the difference. Without knowledge of that status, a defendant may lack the intent needed to make his behavior wrongful. Pp. 228–232.

(b) The Government’s arguments to the contrary are unpersuasive. In claiming that Congress does not normally require defendants to know their own status, it points to statutes where the defendant’s status is not the “crucial element” separating innocent from wrongful conduct. *X-Citement Video*, 513 U.S., at 73. Those statutes are quite different from the provisions at issue here, where the defendant’s status separates innocent from wrongful conduct. The Government also argues that whether an alien is “illegally or unlawfully in the United States” is a question of law, not fact, and thus appeals to the maxim that “ignorance of the law” is no excuse. But that maxim normally applies where a defendant possesses the requisite mental state in respect to the elements of the crime but claims to be unaware of a law forbidding his conduct. That maxim does not normally apply where a defendant’s mistaken impression about a collateral legal question causes him to misunderstand his conduct’s significance, thereby negating an element of the offense. Rehaif’s status as an alien “illegally or unlawfully in the United States” refers to what commentators call a “collateral” question of law, and a mistake regarding that status negates an element of the offense. Finally, the statutory and legislative history on which the Government relies is at best inconclusive. Pp. 232–236.

888 F. 3d 1138, reversed and remanded.

BREYER, J., delivered the opinion of the Court, in which ROBERTS, C. J., and GINSBURG, SOTOMAYOR, KAGAN, GORSUCH, and KAVANAUGH, JJ., joined. ALITO, J., filed a dissenting opinion, in which THOMAS, J., joined, *post*, p. 238.

Rosemary Cakmis argued the cause for petitioner. With her on the briefs were *Donna Lee Elm*, *Robert Godfrey*, *Adeel Bashir*, *Conrad Kahn*, *Virginia A. Seitz*, *Jeffrey T. Green*, and *Sarah O’Rourke Schrup*.

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Allon Kedem argued the cause for the United States. With him on the brief were *Solicitor General Francisco*, *Assistant Attorney General Benczkowski*, *Eric J. Feigin*, *Jenny C. Ellickson*, and *Joshua K. Handell*.*

JUSTICE BREYER delivered the opinion of the Court.

A federal statute, 18 U. S. C. § 922(g), provides that “[i]t shall be unlawful” for certain individuals to possess firearms. The provision lists nine categories of individuals subject to the prohibition, including felons and aliens who are “illegally or unlawfully in the United States.” *Ibid.* A separate provision, § 924(a)(2), adds that anyone who “*knowingly* violates” the first provision shall be fined or imprisoned for up to 10 years. (Emphasis added.)

The question here concerns the scope of the word “knowingly.” Does it mean that the Government must prove that a defendant knew both that he engaged in the relevant conduct (that he possessed a firearm) and also that he fell within the relevant status (that he was a felon, an alien unlawfully in this country, or the like)? We hold that the word “knowingly” applies both to the defendant’s conduct and to the defendant’s status. To convict a defendant, the Government therefore must show that the defendant knew he possessed a firearm and also that he knew he had the relevant status when he possessed it.

I

Petitioner Hamid Rehaif entered the United States on a nonimmigrant student visa to attend university. After he

**David Oscar Markus*, *Thomas W. Hillier II*, and *Erin K. Earl* filed a brief for the National Association of Criminal Defense Lawyers as *amicus curiae* urging reversal.

Eric A. Tirschwell filed a brief for Everytown for Gun Safety as *amicus curiae* urging affirmance.

Charles Roth filed a brief for the National Immigrant Justice Center as *amicus curiae*.

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received poor grades, the university dismissed him and told him that his “‘immigration status’” would be terminated unless he transferred to a different university or left the country. 888 F. 3d 1138, 1141 (CA11 2018). Rehaif did neither.

Rehaif subsequently visited a firing range, where he shot two firearms. The Government learned about his target practice and prosecuted him for possessing firearms as an alien unlawfully in the United States, in violation of § 922(g) and § 924(a)(2). At the close of Rehaif’s trial, the judge instructed the jury (over Rehaif’s objection) that the “United States is not required to prove” that Rehaif “knew that he was illegally or unlawfully in the United States.” *Ibid.* (internal quotation marks omitted). The jury returned a guilty verdict, and Rehaif was sentenced to 18 months’ imprisonment.

Rehaif appealed. He argued that the judge erred in instructing the jury that it did not need to find that he knew he was in the country unlawfully. The Court of Appeals for the Eleventh Circuit, however, concluded that the jury instruction was correct, and it affirmed Rehaif’s conviction. See *id.*, at 1148. The Court of Appeals believed that the criminal law generally does not require a defendant to know his own status, and further observed that no court of appeals had required the Government to establish a defendant’s knowledge of his status in the analogous context of felon-in-possession prosecutions. *Id.*, at 1145–1146.

We granted certiorari to consider whether, in prosecutions under § 922(g) and § 924(a)(2), the Government must prove that a defendant knows of his status as a person barred from possessing a firearm. We now reverse.

II

Whether a criminal statute requires the Government to prove that the defendant acted knowingly is a question of congressional intent. See *Staples v. United States*, 511 U. S. 600, 605 (1994). In determining Congress’ intent, we start

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from a longstanding presumption, traceable to the common law, that Congress intends to require a defendant to possess a culpable mental state regarding “each of the statutory elements that criminalize otherwise innocent conduct.” *United States v. X-Citement Video, Inc.*, 513 U. S. 64, 72 (1994); see also *Morissette v. United States*, 342 U. S. 246, 256–258 (1952). We normally characterize this interpretive maxim as a presumption in favor of “scienter,” by which we mean a presumption that criminal statutes require the degree of knowledge sufficient to “mak[e] a person legally responsible for the consequences of his or her act or omission.” Black’s Law Dictionary 1547 (10th ed. 2014).

We apply the presumption in favor of scienter even when Congress does not specify any scienter in the statutory text. See *Staples*, 511 U. S., at 606. But the presumption applies with equal or greater force when Congress includes a general scienter provision in the statute itself. See ALI, Model Penal Code § 2.02(4), p. 22 (1985) (when a statute “prescribes the kind of culpability that is sufficient for the commission of an offense, without distinguishing among the material elements thereof, such provision shall apply to all the material elements of the offense, unless a contrary purpose plainly appears”).

A

Here we can find no convincing reason to depart from the ordinary presumption in favor of scienter. The statutory text supports the presumption. The text of § 924(a)(2) says that “[w]hoever knowingly violates” certain subsections of § 922, including § 922(g), “shall be” subject to penalties of up to 10 years’ imprisonment. The text of § 922(g) in turn provides that it “shall be unlawful for any person . . . , being an alien . . . illegally or unlawfully in the United States,” to “possess in or affecting commerce, any firearm or ammunition.”

The term “knowingly” in § 924(a)(2) modifies the verb “violates” and its direct object, which in this case is § 922(g).

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The proper interpretation of the statute thus turns on what it means for a defendant to know that he has “violate[d]” § 922(g). With some here-irrelevant omissions, § 922(g) makes possession of a firearm or ammunition unlawful when the following elements are satisfied: (1) a status element (in this case, “being an alien . . . illegally or unlawfully in the United States”); (2) a possession element (to “possess”); (3) a jurisdictional element (“in or affecting commerce”); and (4) a firearm element (a “firearm or ammunition”).

No one here claims that the word “knowingly” modifies the statute’s jurisdictional element. Jurisdictional elements do not describe the “evil Congress seeks to prevent,” but instead simply ensure that the Federal Government has the constitutional authority to regulate the defendant’s conduct (normally, as here, through its Commerce Clause power). *Luna Torres v. Lynch*, 578 U.S. 452, 467 (2016). Because jurisdictional elements normally have nothing to do with the wrongfulness of the defendant’s conduct, such elements are not subject to the presumption in favor of scienter. See *id.*, at 468.

Jurisdictional element aside, however, the text of § 922(g) simply lists the elements that make a defendant’s behavior criminal. As “a matter of ordinary English grammar,” we normally read the statutory term “‘knowingly’ as applying to all the subsequently listed elements of the crime.” *Flores-Figueroa v. United States*, 556 U.S. 646, 650 (2009); see also *id.*, at 652 (we “ordinarily read a phrase in a criminal statute that introduces the elements of a crime with the word ‘knowingly’ as applying that word to each element”). This is notably not a case where the modifier “knowingly” introduces a long statutory phrase, such that questions may reasonably arise about how far into the statute the modifier extends. See *id.*, at 659 (ALITO, J., concurring in part and concurring in judgment). And everyone agrees that the word “knowingly” applies to § 922(g)’s possession element, which is situated after the status element. We see no basis to interpret “knowingly” as

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applying to the second § 922(g) element but not the first. See *United States v. Games-Perez*, 667 F. 3d 1136, 1143 (CA10 2012) (Gorsuch, J., concurring in judgment). To the contrary, we think that by specifying that a defendant may be convicted only if he “knowingly violates” § 922(g), Congress intended to require the Government to establish that the defendant knew he violated the material elements of § 922(g).

B

Beyond the text, our reading of § 922(g) and § 924(a)(2) is consistent with a basic principle that underlies the criminal law, namely, the importance of showing what Blackstone called “a vicious will.” 4 W. Blackstone, *Commentaries on the Laws of England* 21 (1769). As this Court has explained, the understanding that an injury is criminal only if inflicted knowingly “is as universal and persistent in mature systems of law as belief in freedom of the human will and a consequent ability and duty of the normal individual to choose between good and evil.” *Morissette*, 342 U. S., at 250. Scienter requirements advance this basic principle of criminal law by helping to “separate those who understand the wrongful nature of their act from those who do not.” *X-Citement Video*, 513 U. S., at 73, n. 3.

The cases in which we have emphasized scienter’s importance in separating wrongful from innocent acts are legion. See, e. g., *id.*, at 70; *Staples*, 511 U. S., at 610; *Liparota v. United States*, 471 U. S. 419, 425 (1985); *United States v. Bailey*, 444 U. S. 394, 406, n. 6 (1980); *United States v. United States Gypsum Co.*, 438 U. S. 422, 436 (1978); *Morissette*, 342 U. S., at 250–251. We have interpreted statutes to include a scienter requirement even where the statutory text is silent on the question. See *Staples*, 511 U. S., at 605. And we have interpreted statutes to include a scienter requirement even where “the most grammatical reading of the statute” does not support one. *X-Citement Video*, 513 U. S., at 70.

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Applying the word “knowingly” to the defendant’s status in § 922(g) helps advance the purpose of scienter, for it helps to separate wrongful from innocent acts. Assuming compliance with ordinary licensing requirements, the possession of a gun can be entirely innocent. See *Staples*, 511 U. S., at 611. It is therefore the defendant’s *status*, and not his conduct alone, that makes the difference. Without knowledge of that status, the defendant may well lack the intent needed to make his behavior wrongful. His behavior may instead be an innocent mistake to which criminal sanctions normally do not attach. Cf. O. Holmes, *The Common Law* 3 (1881) (“[E]ven a dog distinguishes between being stumbled over and being kicked”).

We have sometimes declined to read a scienter requirement into criminal statutes. See *United States v. Balint*, 258 U. S. 250, 254 (1922). But we have typically declined to apply the presumption in favor of scienter in cases involving statutory provisions that form part of a “regulatory” or “public welfare” program and carry only minor penalties. See *Staples*, 511 U. S., at 606; *Morissette*, 342 U. S., at 255–259. The firearms provisions before us are not part of a regulatory or public welfare program, and they carry a potential penalty of 10 years in prison that we have previously described as “harsh.” *X-Citement Video*, 513 U. S., at 72. Hence, this exception to the presumption in favor of scienter does not apply.

III

The Government’s arguments to the contrary do not convince us that Congress sought to depart from the normal presumption in favor of scienter.

The Government argues that Congress does not normally require defendants to know their own status. But the Government supports this claim primarily by referring to statutes that differ significantly from the provisions at issue here. One of these statutes prohibits “an officer, employee, contractor, or consultant of the United States” from misappropriating classified information. 18 U. S. C. § 1924(a).